No. 25-10979

IN THE UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT

Mary Dawes, Individually and the Administrator of the Estate of Decedent Genevive A. Dawes; Alfredo Saucedo; Virgilio Rosales,
Plaintiffs – Appellants

v.

City of Dallas; Christopher Hess; Jason Kimpel,
Defendants – Appellees

Appeal from the United States District Court for the Northern District of Texas, Dallas Division

BRIEF OF APPELLEE CITY OF DALLAS

TAMMY L. PALOMINO
City Attorney

JENNIFER C. HUGGARD
Chief of Litigation

NICHOLAS D. PALMER
Chief of Appellate Section

J. CHEVES LIGON
State Bar No. 24070147
Assistant City Attorney
CITY ATTORNEY'S OFFICE
1500 Marilla Street, Suite 7DN
Dallas, Texas 75201
214-670-3519

ATTORNEYS FOR THE CITY OF DALLAS

CERTIFICATE OF INTERESTED PERSONS

The Appellee-Defendant City of Dallas (the "City"), as a governmental party, is exempt from the requirement to certify interested persons under Local Rule 28.2.1.

s/ J. Cheves Ligon
Assistant City Attorney

STATEMENT REGARDING ORAL ARGUMENT

The City believes oral argument is not necessary because the factual and legal issues in this appeal involve settled issues of law, so argument will not assist this Court in determining whether the evidence in the record creates a fact issue as to Appellants' *Monell* claims.

TABLE OF CONTENTS

Page

CERTIFICATE OF INTERESTED PERSONS 2

STATEMENT REGARDING ORAL ARGUMENT 3

TABLE OF AUTHORITIES 5

RESPONSE TO STATEMENT OF ISSUES 7

STATEMENT OF THE CASE 7

SUMMARY OF ARGUMENT 9

ARGUMENT 10

I. A motion for summary judgment based on use of force is reviewed de novo. 10

II. The district court correctly rendered summary judgment for the City on Appellants' *Monell* claims on the ground that the Officers did not use unreasonable force under the Fourth Amendment. 11

A. The Graham factors show the Officers' use of force was not unreasonable. 12

CONCLUSION 13

CERTIFICATE OF SERVICE 14

CERTIFICATE OF COMPLIANCE 15

TABLE OF AUTHORITIES

Cases: **Page(s)**

Anderson v. Liberty Lobby, Inc.,
477 U.S. 242 (1986) 10

Buehler v. Dear,
27 F.4th 969 (5th Cir. 2022) 11

Cooper Tire & Rubber Co. v. Farese,
248 F. App'x 555 (5th Cir. 2007) 8

Darden v. City of Fort Worth,
880 F.3d 722 (5th Cir. 2018) 11

Dawes v. City of Dallas,
No. 22-10876, 2024 WL 2268529 (5th Cir. May 20, 2024), cert. denied, 145 S. Ct. 2699 (2025) 7, 8

Graham v. Connor,
490 U.S. 386 (1989) 11, 12

Hicks-Fields v. Harris County,
860 F.3d 803 (5th Cir. 2017) 11

Hillman v. Loga,
697 F.3d 299 (5th Cir. 2012) 10

Lindsey v. Sears Roebuck & Co.,
16 F.3d 616 (5th Cir. 1994) 10

Matsushita Elec. Indus. Co. v. Zenith Radio Corp.,
475 U.S. 574 (1986) 10

United States v. Smith,
814 F.3d 268 (5th Cir. 2016) 8

Winfrey v. Rogers,
901 F.3d 483 (5th Cir. 2018) 8

Rules:

Fed. R. Civ. P. 56(a) 10

RESPONSE TO STATEMENT OF ISSUES

1. The district court correctly entered summary judgment in favor of the City because the evidence does not create a genuine issue of material fact concerning the reasonableness of the Officers' use of deadly force under the circumstances.

2. The district court correctly entered summary judgment in favor of the City because this Court's precedent forecloses *Monell* liability against the City on Appellants' failure-to-train claims when this Court has already held that the Officers' conduct did not violate a clearly established constitutional right.

STATEMENT OF THE CASE

This appeal is the second time this case has been heard by the Court. In its prior examination of this case, the Court examined the undisputed facts of the incident at issue. *See generally Dawes v. City of Dallas* ("*Dawes I*"), No. 22-10876, 2024 WL 2268529 (5th Cir. May 20, 2024), cert. denied, 145 S. Ct. 2699 (2025). As such, in addition to citations to the record on appeal, the City cites

to the undisputed facts as described by the Court in *Dawes I*.[1]

On January 17, 2017, six officers with the Dallas Police Department ("DPD")—Officers Christopher Hess, Jason Kimpel, Christopher Alisch, Zachary Hopkins, Erin Evans, and Peter Lickwar (the "Officers")—were dispatched to investigate a suspicious vehicle parked in the parking lot of a Dallas apartment complex. *Dawes I*, 2024 WL 2268529, at *1; ROA.805. Dawes and Rosales (together, "Appellants") were inside the vehicle, a Dodge Journey, which had been reported stolen. *Dawes I*, 2024 WL 2268529, at *1; ROA.810-11. Officers Alisch and Hopkins were the first to arrive at the scene. *Dawes I*, 2024 WL 2268529, at *1; ROA.1092 [Hopkins Bodycam 2:30-3:00]. They located the vehicle, "which was boxed in on three of four sides—by fences to the front and left and by another

[1] "The law-of-the-case doctrine generally provides that when a court decides upon a rule of law, that decision should continue to govern the same issues in subsequent stages in the same case." *Winfrey v. Rogers*, 901 F.3d 483, 491 (5th Cir. 2018) (cleaned up). "The doctrine is meant to promote judicial efficiency so that appellate courts do not continually have to reexamine subsequent proceedings in the same case. It forecloses reexamination on a subsequent appeal." *Id.* None of the exceptions to the rule—new evidence, new controlling authority, or a clearly-erroneous decision—apply. *Id.*; *see also United States v. Smith*, 814 F.3d 268, 273 (5th Cir. 2016) ("The law-of-the-case doctrine bars reexamination of issues of law or fact decided on appeal in subsequent proceedings in a trial or appellate court."); *Cooper Tire & Rubber Co. v. Farese*, 248 F. App'x 555, 558 (5th Cir. 2007) ("The law of the case doctrine provides that a decision of a factual or legal issue by an appellate court establishes the law of the case and must be followed in all subsequent proceedings in the same case in the trial court.").

car to the right." *Dawes I*, 2024 WL 2268529, at *1; ROA.1092 [Hopkins Bodycam 3:15]. Officers Alisch and Hopkins immediately began giving loud verbal commands to Appellants to "put [their] hands out the window." *Dawes I*, 2024 WL 2268529, at *1; ROA.1092 [Hopkins Bodycam 3:15-3:30].

SUMMARY OF ARGUMENT

The Court should affirm the district court's judgment. The undisputed facts establish that: the Officers were responding to a call of a suspicious vehicle; the vehicle was reported to be stolen; the Officers identified themselves as police and gave repeated verbal commands to the occupants of the vehicle to show their hands; the occupants of the vehicle ignored the commands; the occupants of the vehicle instead started the engine and began trying to back the vehicle out of parking space striking a fence and patrol car in the process; that two officers were in the path of the vehicle within seconds of when officers initiated force; and the officers that fired their weapons still believed fellow officers were in the vehicle's path and thus in imminent danger. On these facts, the district court correctly held that the Officers' use of force did not violate the Fourth Amendment.

Additionally, even assuming the Officers' force was unreasonable (it was not), the district court correctly entered summary judgment for the City because Appellants failed to demonstrate *Monell* liability. In holding that Appellants could

not establish *Monell* liability, the district court correctly applied this Court's controlling precedent holding that where, as here, municipal employees' conduct does not violate clearly established law, their governmental employer cannot be deemed to have been deliberately indifferent on a failure-to-train theory.

ARGUMENT

I. A motion for summary judgment based on use of force is reviewed de novo.

"The court shall grant summary judgment if the movant shows that there is no genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law." Fed. R. Civ. P. 56(a).

> [W]here the nonmovant bears the burden of proof at trial, the movant may merely point to an absence of evidence, thus shifting to the non-movant the burden of demonstrating by competent summary judgment proof that there is an issue of material fact warranting trial. Only when "there is sufficient evidence favoring the nonmoving party for a jury to return a verdict for that party" is a full trial on the merits warranted.

Lindsey v. Sears Roebuck & Co., 16 F.3d 616, 618 (5th Cir. 1994) (internal citations omitted) (quoting *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 249 (1986)). All reasonable inferences must be viewed in the light most favorable to the party opposing summary judgment, and any doubt must be resolved in favor of the non-moving party. *Matsushita Elec. Indus. Co. v. Zenith Radio Corp.*, 475 U.S. 574, 587 (1986); *Hillman v. Loga*, 697 F.3d 299, 302 (5th Cir. 2012).

To prevail on an excessive force claim, a plaintiff must show that the force employed was "objectively unreasonable." *Graham v. Connor*, 490 U.S. 386, 397 (1989). "Excessive force claims are necessarily fact-intensive; whether the force used is excessive or unreasonable depends on the facts and circumstances of each particular case." *Darden v. City of Fort Worth*, 880 F.3d 722, 728 (5th Cir. 2018) (cleaned up). The focus is not best practices or desired outcomes, but instead, "the touchstone of [the Court's] inquiry is simply the reasonableness of the force employed." *Buehler v. Dear*, 27 F.4th 969, 981 (5th Cir. 2022) (emphasis added).

II. The district court correctly rendered summary judgment for the City on Appellants' *Monell* claims on the ground that the Officers did not use unreasonable force under the Fourth Amendment.

Appellants concede the settled principle of law that if a municipality's employee has not violated an individual's constitutional rights, *Monell* liability cannot attach to the municipal employer. (*See* Appellants' Br. 30 ["If the Section 1983 claims against police officers are dismissed because of the lack of a constitutional violation, the claims against the City would also be defeated."].) *See Hicks-Fields v. Harris County*, 860 F.3d 803, 808 (5th Cir. 2017) ("'As is well established, every *Monell* claim requires "an underlying constitutional violation."'"). For the reasons stated below, the salient undisputed facts of this case —as determined in *Dawes I*—show the officers did not violate Appellants' Fourth

Amendment rights. As such, their *Monell* claims fail, and the Court should affirm the district court's judgment.

A. The Graham factors show the Officers' use of force was not unreasonable.

Determining whether a use of force was reasonable under the Fourth Amendment "is not capable of precise definition or mechanical application." *Graham*, 490 U.S. 386 at 396 (quoting *Bell v. Wolfish*, 441 U.S. 520, 559 (1979)). Instead, "its proper application requires careful attention to the facts and circumstances of each particular case, including" what are known as the *Graham* factors: (1) "the severity of the crime at issue," (2) "whether the suspect poses an immediate threat to the safety of the officers or others," and (3) "whether he is actively resisting arrest or attempting to evade arrest by flight." *Id.*

CONCLUSION

For the foregoing reasons, the Court should affirm the district court's judgment.

Respectfully submitted,

s/ J. Cheves Ligon
J. CHEVES LIGON
Assistant City Attorney
CITY ATTORNEY'S OFFICE
1500 Marilla Street, Room 7DN
Dallas, Texas 75201
Telephone: 214-670-3519
john.ligon@dallas.gov

January 30, 2026

CERTIFICATE OF SERVICE

I certify that on January 30, 2026, the foregoing document was electronically filed with the Clerk of the Court for the United States Court of Appeals for the Fifth Circuit using the electronic case filing system of the Court. I further certify that I have complied with the privacy and redaction requirements of Fed. R. App. P. 25(a)(5).

Service is made through the Court's Notice of Docket Activity on Thad D. Spalding, Shelby White, and Daryl K. Washington, counsel for Appellants, who have consented in writing to accept such notice as service of this document by electronic means.

s/ J. Cheves Ligon
Assistant City Attorney

CERTIFICATE OF COMPLIANCE

1. This brief complies with the type-volume limitation of Fed. R. App. P. 32(a)(7)(B) because: this brief contains 1,333 words, excluding the parts of the brief exempted by Fed. R. App. P. 32(f).

2. This brief complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type style requirements of Fed. R. App. P. 32(a)(6) because: this brief has been prepared in a proportionally spaced typeface using Typst 0.15.0 in 14-point Liberation Serif.

s/ J. Cheves Ligon
Assistant City Attorney